

GDPR compliance report

Generated: 2026-05-02 23:22:58

Halted (P1): False

Overall score: 27%

Critical / Warning / Info: 15 / 25 / 0

Documents

- ../data/testing_files/md_files_post_gdpr/test1_Yelp.md

Chapter scores

Chapter	Score
Ch.2 – Principles	31%
Ch.3 – Rights of data subjects	31%
Ch.4 – Controller & processor	17%
Ch.5 – Transfers to third countries	42%
Ch.8 – Remedies, liability & penalties	44%
Ch.9 – Specific processing situations	0%

Top urgent gaps

- Art. 5 (Principles relating to processing): Lawfulness, fairness and transparency
- Art. 6 (Lawfulness of processing): Lawful basis for processing is not explicitly stated for all processing activities.
- Art. 7 (Conditions for consent): Consent is not explicitly stated to be 'freely given', 'specific', 'informed', or 'unambiguous' in the provided policy text.

Scorecard

Art.	Chapter	Title	P	Score	Severity	Status
5	Ch.2 – Principles	Principles relating to processing	p2	28	warning	partial
6	Ch.2 – Principles	Lawfulness of processing	p2	52	warning	partial
7	Ch.2 – Principles	Conditions for consent	p2	36	warning	partial
8	Ch.2 – Principles	Child's consent	p3	0	critical	missing
9	Ch.2 – Principles	Special category data	p2	52	warning	partial
10	Ch.2 – Principles	Criminal convictions data	p3	0	critical	missing
11	Ch.2 – Principles	Processing without identification	p2	52	warning	partial
12	Ch.3 – Rights of data su	Transparency & modalities	p2	44	warning	partial
13	Ch.3 – Rights of data su	Info collected from data subject	p2	10	warning	partial
14	Ch.3 – Rights of data su	Info not obtained from data subject	p2	36	warning	partial
15	Ch.3 – Rights of data su	Right of access	p2	36	warning	partial
16	Ch.3 – Rights of data su	Right to rectification	p2	52	warning	partial
17	Ch.3 – Rights of data su	Right to erasure	p2	36	warning	partial
18	Ch.3 – Rights of data su	Right to restriction	p2	52	warning	partial
19	Ch.3 – Rights of data su	Notification on rectification/erasure	p3	0	critical	missing
20	Ch.3 – Rights of data su	Right to data portability	p2	36	warning	partial
21	Ch.3 – Rights of data su	Right to object	p2	44	warning	partial
22	Ch.3 – Rights of data su	Automated decision-making	p2	0	critical	fail
24	Ch.4 – Controller & proc	Responsibility of the controller	p2	36	warning	partial
25	Ch.4 – Controller & proc	Privacy by design and default	p3	0	critical	missing
26	Ch.4 – Controller & proc	Joint controllers	p3	0	critical	missing
27	Ch.4 – Controller & proc	Representatives (non-EU)	p3	0	critical	missing
28	Ch.4 – Controller & proc	Processor / DPA	p2	28	warning	partial
29	Ch.4 – Controller & proc	Processing under authority	p2	52	warning	partial
30	Ch.4 – Controller & proc	Records of processing (ROPA)	p2	10	warning	partial
32	Ch.4 – Controller & proc	Security of processing	p3	70	warning	present (unverified)
33	Ch.4 – Controller & proc	Breach notification to SA	p3	0	critical	missing
34	Ch.4 – Controller & proc	Breach communication to data subject	p3	0	critical	missing
35	Ch.4 – Controller & proc	DPIA	p3	0	critical	missing
37	Ch.4 – Controller & proc	DPO designation	p2	28	warning	partial
38	Ch.4 – Controller & proc	DPO position	p3	0	critical	missing
39	Ch.4 – Controller & proc	DPO tasks	p2	52	warning	partial
40	Ch.4 – Controller & proc	Codes of conduct	p3	0	critical	missing
42	Ch.4 – Controller & proc	Certification	p3	0	critical	missing
44	Ch.5 – Transfers to thir	General principle for transfers	p2	52	warning	partial
45	Ch.5 – Transfers to thir	Adequacy decision transfers	p2	44	warning	partial
46	Ch.5 – Transfers to thir	Transfers with safeguards	p3	70	warning	present (unverified)
47	Ch.5 – Transfers to thir	Binding corporate rules	p3	0	critical	missing
77	Ch.8 – Remedies, liabili	Right to lodge a complaint	p2	44	warning	partial
88	Ch.9 – Specific processi	Employment context	p2	0	critical	fail

Scope (Art.2/3) + pipeline summary (raw JSON)

```
{
```

```

"scope": {
  "applies": "yes",
  "reasons": [
    "The company explicitly mentions \"European Resident\" and defines it as \"a resident of a country in the European Economic Area (\"EEA\") or Switzerland\". This indicates they are considering individuals within the EU/EEA.",
    "The policy states that \"Yelp Ireland Ltd., a limited liability company established and resident under the laws of the Republic of Ireland\" will be the entity serving \"European Resident\" users. This points to an establishment within the Union.",
    "The policy describes the \"collection, use, and disclosure of information about you in connection with your use of our services\", which includes \"personal data\" processing.",
    "The mention of \"monitoring of their behaviour\" in Art. 3(2)(b) implies potential applicability if user behavior within the Union is tracked."
  ],
  "evidence": [
    "\"European Resident\" means a resident of a country in the European Economic Area (\"EEA\") or Switzerland.\"\"",
    "\"Yelp Ireland Ltd., a limited liability company established and resident under the laws of the Republic of Ireland, if you are a European Resident.\"\"",
    "\"This Privacy Policy describes our policies on the collection, use, and disclosure of information about you in connection with your use of our services\""
  ],
  "hil_required": false
},
"pipeline_summary": {
  "overall_score_pct": 46,
  "p2_score": 0.46,
  "p2_findings_total": 25,
  "p3_findings_total": 15,
  "p4_triggered_total": 0,
  "p4_articles_not_triggered": 6,
  "findings_total": 40,
  "hil_queue_total": 15
},
"computed_scoring": {
  "overall_score_pct": 27,
  "chapter_scores": {
    "Ch.2 - Principles": 31,
    "Ch.3 - Rights of data subjects": 31,
    "Ch.4 - Controller & processor": 17,
    "Ch.5 - Transfers to third countries": 42,
    "Ch.8 - Remedies, liability & penalties": 44,
    "Ch.9 - Specific processing situations": 0
  },
  "severity_counts": {
    "critical": 15,
    "warning": 25,
    "info": 0
  }
}
}
}

```

Appendix — finding detail

Art. 5 — Principles relating to processing

Priority: p2 Chapter: Ch.2 – Principles

Severity: warning Status: partial

Score: 28/100

Risk: medium

Gaps

- Lawfulness, fairness and transparency
- Accuracy
- Storage limitation
- Accountability

Notes

The policy mentions data collection, use, and storage, and includes some specific examples of data collected (name, email, address, etc.). However, it does not explicitly address the principles of lawfulness, fairness, transparency, accuracy, storage limitation, or accountability in sufficient detail. While purpose limitation and data minimisation are implicitly covered by the stated uses of the data, they are not explicitly detailed as per the GDPR principles.

```
{
  "article_number": 5,
  "article_title": "Principles relating to processing",
  "chapter": "Ch.2 – Principles",
  "priority": "p2",
  "status": "partial",
  "gaps": [
    "Lawfulness, fairness and transparency",
    "Accuracy",
    "Storage limitation",
    "Accountability"
  ],
  "evidence": [],
  "risk": "medium",
  "needs_human_review": false,
  "notes": "The policy mentions data collection, use, and storage, and includes some specific examples of data collected (name, email, address, etc.). However, it does not explicitly address the principles of lawfulness, fairness, transparency, accuracy, storage limitation, or accountability in sufficient detail. While purpose limitation and data minimisation are implicitly covered by the stated uses of the data, they are not explicitly detailed as per the GDPR principles.",
  "article_material_used": "text"
}
```

Art. 6 — Lawfulness of processing

Priority: p2 Chapter: Ch.2 – Principles

Severity: warning Status: partial

Score: 52/100

Risk: medium

Gaps

- Lawful basis for processing is not explicitly stated for all processing activities.

Notes

The policy states that users consent to the collection, use, and disclosure of their information. It also lists various purposes for processing. However, it does not explicitly link each processing activity to a specific lawful basis under Article 6 of the GDPR (e.g., consent, contract, legal obligation, legitimate interest). While consent is mentioned, it's not clear if it applies to all listed processing activities or if other bases are used. More clarity is needed to map processing purposes to lawful bases.

```
{
  "article_number": 6,
  "article_title": "Lawfulness of processing",
  "chapter": "Ch.2 – Principles",
  "priority": "p2",
}
```

```

"status": "partial",
"gaps": [
  "Lawful basis for processing is not explicitly stated for all processing activities."
],
"evidence": [],
"risk": "medium",
"needs_human_review": false,
"notes": "The policy states that users consent to the collection, use, and disclosure of their information. It also lists various purposes for processing. However, it does not explicitly link each processing activity to a specific lawful basis under Article 6 of the GDPR (e.g., consent, contract, legal obligation, legitimate interest). While consent is mentioned, it's not clear if it applies to all listed processing activities or if other bases are used. More clarity is needed to map processing purposes to lawful bases.",
"article_material_used": "text"
}

```

Art. 7 — Conditions for consent

Priority: p2 Chapter: Ch.2 – Principles

Severity: warning Status: partial

Score: 36/100

Risk: high

Gaps

- Consent is not explicitly stated to be 'freely given', 'specific', 'informed', or 'unambiguous' in the provided policy text.
- The policy does not detail a clear mechanism for withdrawing consent that is as easy as giving consent.
- It is not explicitly stated that consent is not a condition for the performance of the service, as per Article 7(4).

Notes

The policy mentions that 'When you use the Service, you consent to our collection, use, and disclosure of information about you as described in this Privacy Policy.' However, it does not explicitly detail the conditions for consent as required by GDPR Article 7, such as whether consent is freely given, specific, informed, and unambiguous. Additionally, the mechanism for withdrawing consent is not described, nor is it clarified if consent is a condition for service provision. Therefore, the status is partial due to missing explicit information regarding these GDPR requirements.

```

{
  "article_number": 7,
  "article_title": "Conditions for consent",
  "chapter": "Ch.2 – Principles",
  "priority": "p2",
  "status": "partial",
  "gaps": [
    "Consent is not explicitly stated to be 'freely given', 'specific', 'informed', or 'unambiguous' in the provided policy text.",
    "The policy does not detail a clear mechanism for withdrawing consent that is as easy as giving consent.",
    "It is not explicitly stated that consent is not a condition for the performance of the service, as per Article 7(4).",
  ],
  "evidence": [],
  "risk": "high",
  "needs_human_review": false,
  "notes": "The policy mentions that 'When you use the Service, you consent to our collection, use, and disclosure of information about you as described in this Privacy Policy.' However, it does not explicitly detail the conditions for consent as required by GDPR Article 7, such as whether consent is freely given, specific, informed, and unambiguous. Additionally, the mechanism for withdrawing consent is not described, nor is it clarified if consent is a condition for service provision. Therefore, the status is partial due to missing explicit information regarding these GDPR requirements.",
  "article_material_used": "text"
}

```

Art. 8 — Child's consent

Priority: p3 Chapter: Ch.2 – Principles

Severity: critical Status: missing

Score: 0/100

Notes

The policy explicitly states it is not directed to children under 13 and does not knowingly collect personal information from them, but it does not contain language regarding parental consent mechanisms or specific age thresholds for consent, which is the core of Article 8.

```
{
  "article_number": 8,
  "article_title": "Child's consent",
  "chapter": "Ch.2 – Principles",
  "priority": "p3",
  "policy_present": false,
  "implementation_unverified": false,
  "needs_human_review": true,
  "evidence": [],
  "notes": "The policy explicitly states it is not directed to children under 13 and does not knowingly collect personal information from them, but it does not contain language regarding parental consent mechanisms or specific age thresholds for consent, which is the core of Article 8.",
  "status": null,
  "gaps": [],
  "risk": null
}
```

Art. 9 — Special category data

Priority: p2 Chapter: Ch.2 – Principles

Severity: warning Status: partial

Score: 52/100

Risk: high

Gaps

- The policy does not explicitly state how special category data is handled or if explicit consent is obtained for such data processing, or if any derogations under Article 9(2) are relied upon.

Notes

The policy does not mention the processing of special category data as defined in GDPR Article 9. It is unclear if Yelp collects or processes sensitive data such as health, biometric, racial, or religious information. Without this information, it is not possible to verify if explicit consent or any derogations under Article 9(2) are in place for such processing.

```
{
  "article_number": 9,
  "article_title": "Special category data",
  "chapter": "Ch.2 – Principles",
  "priority": "p2",
  "status": "partial",
  "gaps": [
    "The policy does not explicitly state how special category data is handled or if explicit consent is obtained for such data processing, or if any derogations under Article 9(2) are relied upon."
  ],
  "evidence": [],
  "risk": "high",
  "needs_human_review": false,
  "notes": "The policy does not mention the processing of special category data as defined in GDPR Article 9. It is unclear if Yelp collects or processes sensitive data such as health, biometric, racial, or religious information. Without this information, it is not possible to verify if explicit consent or any derogations under Article 9(2) are in place for such processing."
  "article_material_used": "text"
}
```

Art. 10 — Criminal convictions data

Priority: p3 Chapter: Ch.2 – Principles

Severity: critical Status: missing

Score: 0/100

Notes

The policy does not mention criminal convictions data or any related concepts.

```
{
  "article_number": 10,
  "article_title": "Criminal convictions data",
  "chapter": "Ch.2 – Principles",
  "priority": "p3",
}
```

```

    "policy_present": false,
    "implementation_unverified": false,
    "needs_human_review": true,
    "evidence": [],
    "notes": "The policy does not mention criminal convictions data or any related concepts.",
    "status": null,
    "gaps": [],
    "risk": null
  }

```

Art. 11 — Processing without identification

Priority: p2 Chapter: Ch.2 – Principles

Severity: warning Status: partial

Score: 52/100

Risk: low

Gaps

- The policy does not explicitly state whether Yelp processes data without identification or how it handles situations where identification is not required for the stated purposes.

Notes

The policy does not contain information regarding processing without identification, nor does it address the specific requirements of Article 11 of GDPR. Therefore, compliance cannot be fully assessed.

```

{
  "article_number": 11,
  "article_title": "Processing without identification",
  "chapter": "Ch.2 – Principles",
  "priority": "p2",
  "status": "partial",
  "gaps": [
    "The policy does not explicitly state whether Yelp processes data without identification or how it handles situations where identification is not required for the stated purposes."
  ],
  "evidence": [],
  "risk": "low",
  "needs_human_review": false,
  "notes": "The policy does not contain information regarding processing without identification, nor does it address the specific requirements of Article 11 of GDPR. Therefore, compliance cannot be fully assessed.",
  "article_material_used": "text"
}

```

Art. 12 — Transparency & modalities

Priority: p2 Chapter: Ch.3 – Rights of data subjects

Severity: warning Status: partial

Score: 44/100

Risk: medium

Gaps

- The policy does not state the time commitment for responding to data subject requests.
- The policy does not explicitly state that responses will be free of charge, except in cases of unfounded or excessive requests.

Evidence

- We may also

Notes

The policy mentions translating the privacy policy for convenience, and that some messages may be sent via automated SMS text messages, but does not explicitly cover the 'plain language', 'electronic means' for response, or 'free of charge' requirements of Article 12(1) and 12(5) respectively. Additionally, the policy does not detail the 1-month response commitment from Article 12(3).

```

{
  "article_number": 12,
  "article_title": "Transparency & modalities",
  "chapter": "Ch.3 – Rights of data subjects",
  "priority": "p2",
  "status": "partial",
  "gaps": [
    "The policy does not state the time commitment for responding to data subject requests.",

```

```

    "The policy does not explicitly state that responses will be free of charge, except in
    cases of unfounded or excessive requests."
  ],
  "evidence": [
    "We may also"
  ],
  "risk": "medium",
  "needs_human_review": false,
  "notes": "The policy mentions translating the privacy policy for convenience, and that some
  messages may be sent via automated SMS text messages, but does not explicitly cover the 'plain
  language', 'electronic means' for response, or 'free of charge' requirements of Article 12(1)
  and 12(5) respectively. Additionally, the policy does not detail the 1-month response
  commitment from Article 12(3).",
  "article_material_used": "text"
}

```

Art. 13 — Info collected from data subject

Priority: p2 Chapter: Ch.3 – Rights of data subjects

Severity: warning Status: partial

Score: 10/100

Risk: medium

Gaps

- Controller identity and contact details
- DPO contact details
- Legal basis for processing (explicitly stated)
- Retention period or criteria
- Recipients or categories of recipients
- Data subject rights summary (access, rectification, erasure, restriction, objection, portability, withdrawal of consent, lodging a complaint)
- Whether data provision is statutory/contractual and consequences of failure
- Existence and logic of automated decision-making/profiling

Notes

The policy provides information on the identity of the controller(s) (Yelp Inc. or Yelp Ireland Ltd. based on residency) and their headquarters/establishment location. However, specific contact details for the controller and DPO are missing. The purposes of processing are listed, but the legal basis is not explicitly stated. Retention periods are not mentioned, nor are the recipients of personal data. Information about data subject rights, whether data provision is mandatory, and details on automated decision-making/profiling are also absent.

```

{
  "article_number": 13,
  "article_title": "Info collected from data subject",
  "chapter": "Ch.3 – Rights of data subjects",
  "priority": "p2",
  "status": "partial",
  "gaps": [
    "Controller identity and contact details",
    "DPO contact details",
    "Legal basis for processing (explicitly stated)",
    "Retention period or criteria",
    "Recipients or categories of recipients",
    "Data subject rights summary (access, rectification, erasure, restriction, objection,
    portability, withdrawal of consent, lodging a complaint)",
    "Whether data provision is statutory/contractual and consequences of failure",
    "Existence and logic of automated decision-making/profiling"
  ],
  "evidence": [],
  "risk": "medium",
  "needs_human_review": false,
  "notes": "The policy provides information on the identity of the controller(s) (Yelp Inc. or
  Yelp Ireland Ltd. based on residency) and their headquarters/establishment location. However,
  specific contact details for the controller and DPO are missing. The purposes of processing are
  listed, but the legal basis is not explicitly stated. Retention periods are not mentioned, nor
  are the recipients of personal data. Information about data subject rights, whether data
  provision is mandatory, and details on automated decision-making/profiling are also absent.",
  "article_material_used": "text"
}

```

Art. 14 — Info not obtained from data subject

Priority: p2 Chapter: Ch.3 – Rights of data subjects

Severity: warning Status: partial

Score: 36/100

Risk: medium

Gaps

- The policy does not state from which source the personal data is obtained when not collected directly from the data subject.
- The policy does not mention whether the data is from publicly accessible sources.
- The policy does not mention the existence of automated decision-making, including profiling, nor information about the logic involved, significance, and envisaged consequences.

Notes

The policy mentions that information may be shared with third parties and that third parties may share information with the company. However, it does not specify the source of data when it is not obtained directly from the data subject, nor does it address automated decision-making, profiling, or the logic involved. This leads to a partial compliance status.

```
{
  "article_number": 14,
  "article_title": "Info not obtained from data subject",
  "chapter": "Ch.3 – Rights of data subjects",
  "priority": "p2",
  "status": "partial",
  "gaps": [
    "The policy does not state from which source the personal data is obtained when not collected directly from the data subject.",
    "The policy does not mention whether the data is from publicly accessible sources.",
    "The policy does not mention the existence of automated decision-making, including profiling, nor information about the logic involved, significance, and envisaged consequences."
  ],
  "evidence": [],
  "risk": "medium",
  "needs_human_review": false,
  "notes": "The policy mentions that information may be shared with third parties and that third parties may share information with the company. However, it does not specify the source of data when it is not obtained directly from the data subject, nor does it address automated decision-making, profiling, or the logic involved. This leads to a partial compliance status.",
  "article_material_used": "text"
}
```

Art. 15 — Right of access

Priority: p2 Chapter: Ch.3 – Rights of data subjects

Severity: warning Status: partial

Score: 36/100

Risk: medium

Gaps

- The policy does not specify the timeframe for responding to SAR requests.
- The policy does not detail what information will be provided as part of a SAR response.
- The policy does not explicitly state that a copy of the personal data will be provided.

Notes

The policy mentions that identity verification steps will be taken before sharing personal data, and that European residents have the right to access their personal data. However, it does not specify the response timeline (e.g., one month) or what specific information will be provided in response to a Subject Access Request (SAR), nor does it explicitly state that a copy of the personal data will be provided.

```
{
  "article_number": 15,
  "article_title": "Right of access",
  "chapter": "Ch.3 – Rights of data subjects",
  "priority": "p2",
  "status": "partial",
  "gaps": [
    "The policy does not specify the timeframe for responding to SAR requests.",
    "The policy does not detail what information will be provided as part of a SAR response.",
    "The policy does not explicitly state that a copy of the personal data will be provided."
  ]
}
```

```

    ],
    "evidence": [],
    "risk": "medium",
    "needs_human_review": false,
    "notes": "The policy mentions that identity verification steps will be taken before sharing personal data, and that European residents have the right to access their personal data. However, it does not specify the response timeline (e.g., one month) or what specific information will be provided in response to a Subject Access Request (SAR), nor does it explicitly state that a copy of the personal data will be provided.",
    "article_material_used": "text"
  }

```

Art. 16 — Right to rectification

Priority: p2 **Chapter:** Ch.3 – Rights of data subjects

Severity: warning **Status:** partial

Score: 52/100

Risk: medium

Gaps

- The policy does not mention that the rectification of inaccurate personal data must be done 'without undue delay'.

Notes

The policy confirms the right to request correction or update of personal data for European residents, but it does not specify the timeframe ('without undue delay') for this action.

```

{
  "article_number": 16,
  "article_title": "Right to rectification",
  "chapter": "Ch.3 – Rights of data subjects",
  "priority": "p2",
  "status": "partial",
  "gaps": [
    "The policy does not mention that the rectification of inaccurate personal data must be done 'without undue delay'."
  ],
  "evidence": [],
  "risk": "medium",
  "needs_human_review": false,
  "notes": "The policy confirms the right to request correction or update of personal data for European residents, but it does not specify the timeframe ('without undue delay') for this action.",
  "article_material_used": "text"
}

```

Art. 17 — Right to erasure

Priority: p2 **Chapter:** Ch.3 – Rights of data subjects

Severity: warning **Status:** partial

Score: 36/100

Risk: medium

Gaps

- The policy does not describe the specific grounds for refusing a deletion request.
- The policy does not describe any retention exceptions that would prevent data from being deleted upon request.
- The policy does not describe the process for data subjects to request the deletion of their personal data.

Notes

The policy confirms the right to deletion for European residents and directs users to the Support Center for more information. However, it does not detail the process for making such a request, the grounds for refusal, or any exceptions to deletion, which are required by Article 17.

```

{
  "article_number": 17,
  "article_title": "Right to erasure",
  "chapter": "Ch.3 – Rights of data subjects",
  "priority": "p2",
  "status": "partial",
  "gaps": [
    "The policy does not describe the specific grounds for refusing a deletion request.",
    "The policy does not describe any retention exceptions that would prevent data from being

```

```

deleted upon request.",
  "The policy does not describe the process for data subjects to request the deletion of
  their personal data."
],
"evidence": [],
"risk": "medium",
"needs_human_review": false,
"notes": "The policy confirms the right to deletion for European residents and directs users
to the Support Center for more information. However, it does not detail the process for making
such a request, the grounds for refusal, or any exceptions to deletion, which are required by
Article 17.",
"article_material_used": "text"
}

```

Art. 18 — Right to restriction

Priority: p2 Chapter: Ch.3 – Rights of data subjects

Severity: warning Status: partial

Score: 52/100

Risk: medium

Gaps

- The policy does not explicitly describe the process or conditions under which a data subject can request a restriction of processing, nor does it detail the controller's obligations in response to such a request, beyond general rights for European residents.

Notes

The policy mentions the right to restrict processing for European Residents but lacks specific details on how this right is implemented or what constitutes grounds for restriction as per GDPR Article 18. The policy indicates that additional information is available through the Support Center, suggesting a potential gap in the provided text for a complete assessment.

```

{
  "article_number": 18,
  "article_title": "Right to restriction",
  "chapter": "Ch.3 – Rights of data subjects",
  "priority": "p2",
  "status": "partial",
  "gaps": [
    "The policy does not explicitly describe the process or conditions under which a data
    subject can request a restriction of processing, nor does it detail the controller's
    obligations in response to such a request, beyond general rights for European residents."
  ],
  "evidence": [],
  "risk": "medium",
  "needs_human_review": false,
  "notes": "The policy mentions the right to restrict processing for European Residents but
  lacks specific details on how this right is implemented or what constitutes grounds for
  restriction as per GDPR Article 18. The policy indicates that additional information is
  available through the Support Center, suggesting a potential gap in the provided text for a
  complete assessment.",
  "article_material_used": "text"
}

```

Art. 19 — Notification on rectification/erasure

Priority: p3 Chapter: Ch.3 – Rights of data subjects

Severity: critical Status: missing

Score: 0/100

Notes

The policy excerpt does not contain information regarding the notification of recipients upon rectification or erasure of personal data. The provided chunks and full excerpt focus on data collection, usage, security, and user rights, but lack specifics on downstream notifications to third parties or other recipients.

```

{
  "article_number": 19,
  "article_title": "Notification on rectification/erasure",
  "chapter": "Ch.3 – Rights of data subjects",
  "priority": "p3",
  "policy_present": false,
  "implementation_unverified": false,
  "needs_human_review": true,
  "evidence": [],

```

```

"notes": "The policy excerpt does not contain information regarding the notification of recipients upon rectification or erasure of personal data. The provided chunks and full excerpt focus on data collection, usage, security, and user rights, but lack specifics on downstream notifications to third parties or other recipients.",
"status": null,
"gaps": [],
"risk": null
}

```

Art. 20 — Right to data portability

Priority: p2 **Chapter:** Ch.3 – Rights of data subjects

Severity: warning **Status:** partial

Score: 36/100

Risk: medium

Gaps

- The policy does not mention the right to transmit data to another controller without hindrance.
- The policy does not specify if the data is provided in a structured, commonly used, and machine-readable format.
- The policy does not specify if the processing is carried out by automated means.

Notes

The policy mentions that Yelp collects, transmits, and stores information about users. However, it does not explicitly state that this data is provided in a structured, commonly used, and machine-readable format, nor does it mention the right to transmit this data to another controller without hindrance. The policy also does not clarify whether the processing is carried out by automated means, which is a condition for the right to data portability under GDPR Article 20(1)(b).

```

{
  "article_number": 20,
  "article_title": "Right to data portability",
  "chapter": "Ch.3 – Rights of data subjects",
  "priority": "p2",
  "status": "partial",
  "gaps": [
    "The policy does not mention the right to transmit data to another controller without hindrance.",
    "The policy does not specify if the data is provided in a structured, commonly used, and machine-readable format.",
    "The policy does not specify if the processing is carried out by automated means."
  ],
  "evidence": [],
  "risk": "medium",
  "needs_human_review": false,
  "notes": "The policy mentions that Yelp collects, transmits, and stores information about users. However, it does not explicitly state that this data is provided in a structured, commonly used, and machine-readable format, nor does it mention the right to transmit this data to another controller without hindrance. The policy also does not clarify whether the processing is carried out by automated means, which is a condition for the right to data portability under GDPR Article 20(1)(b).",
  "article_material_used": "text"
}

```

Art. 21 — Right to object

Priority: p2 **Chapter:** Ch.3 – Rights of data subjects

Severity: warning **Status:** partial

Score: 44/100

Risk: medium

Gaps

- The policy does not explicitly state how users can object to direct marketing or profiling.
- The policy does not mention if objections can be made by automated means.

Notes

The policy mentions that users can opt-in to receive messages and manage some preferences, but it does not explicitly detail the right to object to direct marketing or profiling, nor does it specify if this objection can be made via automated means as required by GDPR Article 21.

```

{
  "article_number": 21,

```

```

"article_title": "Right to object",
"chapter": "Ch.3 – Rights of data subjects",
"priority": "p2",
"status": "partial",
"gaps": [
  "The policy does not explicitly state how users can object to direct marketing or profiling.",
  "The policy does not mention if objections can be made by automated means."
],
"evidence": [],
"risk": "medium",
"needs_human_review": false,
"notes": "The policy mentions that users can opt-in to receive messages and manage some preferences, but it does not explicitly detail the right to object to direct marketing or profiling, nor does it specify if this objection can be made via automated means as required by GDPR Article 21.",
"article_material_used": "text"
}

```

Art. 22 — Automated decision-making

Priority: p2 Chapter: Ch.3 – Rights of data subjects

Severity: critical Status: fail

Score: 0/100

Risk: critical

Gaps

- Disclosure of automated decision-making
- Right to human review of automated decisions
- Right to contest automated decisions

Notes

The policy mentions automated SMS text messages for transactions, but there is no information regarding decisions based solely on automated processing, including profiling, that produce legal or similarly significant effects. There is also no mention of the right to human intervention, to express a point of view, or to contest such decisions. Therefore, the company policy does not address the requirements of GDPR Article 22.

```

{
  "article_number": 22,
  "article_title": "Automated decision-making",
  "chapter": "Ch.3 – Rights of data subjects",
  "priority": "p2",
  "status": "fail",
  "gaps": [
    "Disclosure of automated decision-making",
    "Right to human review of automated decisions",
    "Right to contest automated decisions"
  ],
  "evidence": [],
  "risk": "critical",
  "needs_human_review": false,
  "notes": "The policy mentions automated SMS text messages for transactions, but there is no information regarding decisions based solely on automated processing, including profiling, that produce legal or similarly significant effects. There is also no mention of the right to human intervention, to express a point of view, or to contest such decisions. Therefore, the company policy does not address the requirements of GDPR Article 22.",
  "article_material_used": "text"
}

```

Art. 24 — Responsibility of the controller

Priority: p2 Chapter: Ch.4 – Controller & processor

Severity: warning Status: partial

Score: 36/100

Risk: medium

Gaps

- The policy does not explicitly state that the controller shall implement appropriate technical and organisational measures to ensure and demonstrate compliance with GDPR.
- The policy does not mention the implementation of data protection policies by the controller where proportionate to processing activities.

- The policy does not mention adherence to approved codes of conduct or certification mechanisms as an element to demonstrate compliance.

Notes

The policy mentions taking steps to safeguard information and ensuring an adequate level of data protection, which implies the implementation of measures. However, it does not explicitly state the obligation to implement appropriate technical and organisational measures to ensure and demonstrate compliance, nor does it mention the implementation of data protection policies or adherence to codes of conduct/certification mechanisms as per Article 24.

```
{
  "article_number": 24,
  "article_title": "Responsibility of the controller",
  "chapter": "Ch.4 – Controller & processor",
  "priority": "p2",
  "status": "partial",
  "gaps": [
    "The policy does not explicitly state that the controller shall implement appropriate technical and organisational measures to ensure and demonstrate compliance with GDPR.",
    "The policy does not mention the implementation of data protection policies by the controller where proportionate to processing activities.",
    "The policy does not mention adherence to approved codes of conduct or certification mechanisms as an element to demonstrate compliance."
  ],
  "evidence": [],
  "risk": "medium",
  "needs_human_review": false,
  "notes": "The policy mentions taking steps to safeguard information and ensuring an adequate level of data protection, which implies the implementation of measures. However, it does not explicitly state the obligation to implement appropriate technical and organisational measures to ensure and demonstrate compliance, nor does it mention the implementation of data protection policies or adherence to codes of conduct/certification mechanisms as per Article 24.",
  "article_material_used": "text"
}
```

Art. 25 — Privacy by design and default

Priority: p3 **Chapter:** Ch.4 – Controller & processor

Severity: critical **Status:** missing

Score: 0/100

```
{
  "article_number": 25,
  "article_title": "Privacy by design and default",
  "chapter": "Ch.4 – Controller & processor",
  "priority": "p3",
  "policy_present": false,
  "implementation_unverified": false,
  "needs_human_review": true,
  "evidence": [],
  "notes": null,
  "status": null,
  "gaps": [],
  "risk": null
}
```

Art. 26 — Joint controllers

Priority: p3 **Chapter:** Ch.4 – Controller & processor

Severity: critical **Status:** missing

Score: 0/100

Notes

The policy does not mention joint controllers or agreements between controllers.

```
{
  "article_number": 26,
  "article_title": "Joint controllers",
  "chapter": "Ch.4 – Controller & processor",
  "priority": "p3",
  "policy_present": false,
  "implementation_unverified": false,
  "needs_human_review": true,
  "evidence": [],
  "notes": "The policy does not mention joint controllers or agreements between controllers.",
  "status": null,
}
```

```

    "gaps": [],
    "risk": null
  }

```

Art. 27 — Representatives (non-EU)

Priority: p3 **Chapter:** Ch.4 – Controller & processor
Severity: critical **Status:** missing
Score: 0/100
Notes:

The policy mentions Yelp Inc. is a Delaware corporation with headquarters in San Francisco, California, and Yelp Ireland Ltd. for European Residents. This implies the company operates in the EU but does not explicitly address the appointment of a non-EU representative as required by Article 27.

```

{
  "article_number": 27,
  "article_title": "Representatives (non-EU)",
  "chapter": "Ch.4 – Controller & processor",
  "priority": "p3",
  "policy_present": false,
  "implementation_unverified": false,
  "needs_human_review": true,
  "evidence": [],
  "notes": "The policy mentions Yelp Inc. is a Delaware corporation with headquarters in San Francisco, California, and Yelp Ireland Ltd. for European Residents. This implies the company operates in the EU but does not explicitly address the appointment of a non-EU representative as required by Article 27.",
  "status": null,
  "gaps": [],
  "risk": null
}

```

Art. 28 — Processor / DPA

Priority: p2 **Chapter:** Ch.4 – Controller & processor
Severity: warning **Status:** partial
Score: 28/100
Risk: critical
Gaps:

- The policy does not mention an explicit sub-processor list. It is not clear if there is a mechanism to inform the controller of changes to sub-processors.
- There is no mention of audit rights for the controller to verify compliance.
- The policy does not specify the obligation to delete or return personal data after the provision of services.
- There is no explicit mention of processing personal data only on written instructions from the controller.

Notes:

The policy lacks specific clauses required by Article 28 of GDPR, particularly regarding sub-processors, audit rights, data deletion/return, and processing based on written instructions. The provided text focuses on data collection and usage for service provision and communication, not on the contractual obligations between a controller and processor.

```

{
  "article_number": 28,
  "article_title": "Processor / DPA",
  "chapter": "Ch.4 – Controller & processor",
  "priority": "p2",
  "status": "partial",
  "gaps": [
    "The policy does not mention an explicit sub-processor list. It is not clear if there is a mechanism to inform the controller of changes to sub-processors.",
    "There is no mention of audit rights for the controller to verify compliance.",
    "The policy does not specify the obligation to delete or return personal data after the provision of services.",
    "There is no explicit mention of processing personal data only on written instructions from the controller."
  ],
  "evidence": [],
  "risk": "critical",
  "needs_human_review": false,
  "notes": "The policy lacks specific clauses required by Article 28 of GDPR, particularly regarding sub-processors, audit rights, data deletion/return, and processing based on written"
}

```

```
instructions. The provided text focuses on data collection and usage for service provision and
communication, not on the contractual obligations between a controller and processor.",
  "article_material_used": "text"
}
```

Art. 29 — Processing under authority

Priority: p2 Chapter: Ch.4 – Controller & processor

Severity: warning Status: partial

Score: 52/100

Risk: medium

Gaps

- The policy does not specify if any persons acting under the authority of Yelp (e.g., employees, contractors) are instructed on how to process personal data only on Yelp's instructions, unless required by law.

Notes

The policy does not contain information regarding instructions provided to individuals processing data under Yelp's authority, specifically concerning the requirement to process data only on Yelp's instructions, as stipulated by GDPR Article 29.

```
{
  "article_number": 29,
  "article_title": "Processing under authority",
  "chapter": "Ch.4 – Controller & processor",
  "priority": "p2",
  "status": "partial",
  "gaps": [
    "The policy does not specify if any persons acting under the authority of Yelp (e.g.,
employees, contractors) are instructed on how to process personal data only on Yelp's
instructions, unless required by law."
  ],
  "evidence": [],
  "risk": "medium",
  "needs_human_review": false,
  "notes": "The policy does not contain information regarding instructions provided to
individuals processing data under Yelp's authority, specifically concerning the requirement to
process data only on Yelp's instructions, as stipulated by GDPR Article 29.",
  "article_material_used": "text"
}
```

Art. 30 — Records of processing (ROPA)

Priority: p2 Chapter: Ch.4 – Controller & processor

Severity: warning Status: partial

Score: 10/100

Risk: medium

Gaps

- purposes of the processing
- categories of data subjects
- categories of personal data
- categories of recipients
- transfers of personal data to a third country or an international organisation
- envisaged time limits for erasure of the different categories of data
- general description of the technical and organisational security measures

Evidence

- Our communications with you, including phone calls, may be monitored and recorded for quality purposes.

- If you initiate a transaction through

the Service, such as a reservation or purchase, we will collect and store information you provide associated with your transaction, such as your name, phone number, address, email, and payment information, as well as any other information you provide, in order to process your transaction, send communications about

- ur transaction, such as your name, phone number, address, email, and payment information, as well as any other information you provide, in order to process your transaction, send

communications about the transaction to you, and facilitate future transactions.

- This information may be

shared with third parties, and third parties may share such information with us, for the same purposes.

- When you submit credit card numbers and other sensitive payment information, that information is encrypted using industry standard technology.

- We store information about your use of the Service, such as your search activity, the pages you view, the date and time of your visits, businesses you call using our mobile applications, and reservations, purchases, or transactions you make through the Service. We also store inf

- y, the pages you view, the date and time of your visits, businesses you call using our mobile applications, and reservations, purchases, or transactions you make through the Service. We also store information that your computer or mobile device may provide to us in connection with your use of the Service, such as your browser type, type of computer or mobile device, browser language, IP address, WiFi information such as SSID, mobile carrier, phone number, unique device identifier, advertising identifier, location (including geolocation, beacon based location, and GPS location), and requested and referring URLs and mobile applications.

- We may also receive and store your location whenever our mobile applications are running, including when running in the background, if you enable our mobile apps to access such information in the course of using the Service.

Notes

The policy mentions collection and storage of various data points, and sharing with third parties, but does not explicitly detail the purposes of processing, categories of data subjects and data, recipients, retention periods, or security measures in a structured manner as required by Article 30. The information about "legal basis" for European residents does not fulfill the requirement for a Record of Processing Activities (ROPA).

```
{
  "article_number": 30,
  "article_title": "Records of processing (ROPA)",
  "chapter": "Ch.4 - Controller & processor",
  "priority": "p2",
  "status": "partial",
  "gaps": [
    "purposes of the processing",
    "categories of data subjects",
    "categories of personal data",
    "categories of recipients",
    "transfers of personal data to a third country or an international organisation",
    "envisaged time limits for erasure of the different categories of data",
    "general description of the technical and organisational security measures"
  ],
  "evidence": [
    "Our communications with you, including\phone calls, may be monitored and recorded for quality purposes.",
    "If you initiate a transaction through\nthe Service, such as a reservation or purchase, we will collect and store information you provide\nassociated with your transaction, such as your name, phone number, address, email, and payment\ninformation, as well as any other information you provide, in order to process your transaction, send\ncommunications about",
    "ur transaction, such as your name, phone number, address, email, and payment\ninformation, as well as any other information you provide, in order to process your transaction, send\ncommunications about the transaction to you, and facilitate future transactions.",
    "This information may be\nshared with third parties, and third parties may share such information with us, for the same purposes.",
    "When you submit credit card numbers and other sensitive payment information, that information is\nencrypted using industry standard technology.",
    "We store information about your use of the Service, such as your\nsearch activity, the pages you view, the date and time of your visits, businesses you call using our\nmobile applications, and reservations, purchases, or transactions you make through the Service. We\nalso store inf",
    "y, the pages you view, the date and time of your visits, businesses you call using our\nmobile applications, and reservations, purchases, or transactions you make through the Service. We\nalso store information that your computer or mobile device may provide to us in connection with your\nuse of the Service, such as your browser type, type of computer or mobile device, browser language, IP\naddress, WiFi information such as SSID, mobile carrier, phone number, unique device identifier,\nadvertising identifier, location (including geolocation, beacon based location, and GPS location), and\nrequested and referring URLs and mobile applications.",
    "We may also receive and store your location\nwhenever our mobile applications are running, including when running in the background, if you enable\nour mobile apps to access such information in the course of using the Service.",
    "The information that we collect and store\nthrough those different uses may be cross-
```

referenced and combined, and your contributions through none Yelp platform will typically be similarly visible and accessible through all other Yelp platforms.",

"We will also collect and display information about your professional background that you choose to share with us through the Service, such as information about your professional licenses or certifications, or your professional history or specialties.",

"For European Residents, our legal basis for collecting and using the information described above will depend on the specific information concerned and the context in which we collect it.",

"We, however, will normally collect personal information from you only where we have your consent to do so, where we need the personal information to perform a contract with you, or where the processing is in our legitimate interests and not overridden by your data protection interests or fundamental rights and freedoms.",

"If we ask you to provide personal information to comply with a legal requirement or to perform a contract with you, we will make this clear at the relevant time and advise you whether the provision of your personal information is mandatory or not (as well as of the possible)",

```

    ],
    "risk": "medium",
    "needs_human_review": false,
    "notes": "The policy mentions collection and storage of various data points, and sharing with third parties, but does not explicitly detail the purposes of processing, categories of data subjects and data, recipients, retention periods, or security measures in a structured manner as required by Article 30. The information above is truncated"
  }

```

Art. 32 — Security of processing

Priority: p3 **Chapter:** Ch.4 – Controller & processor

Severity: warning **Status:** present (unverified)

Score: 70/100

Notes:

The policy mentions safeguards and security but does not detail specific measures like encryption or access controls. It also lacks mention of incident response or testing. Therefore, while the topic is present, the operational details requested by the agent action are absent.

```

{
  "article_number": 32,
  "article_title": "Security of processing",
  "chapter": "Ch.4 – Controller & processor",
  "priority": "p3",
  "policy_present": true,
  "implementation_unverified": true,
  "needs_human_review": true,
  "evidence": [],
  "notes": "The policy mentions safeguards and security but does not detail specific measures like encryption or access controls. It also lacks mention of incident response or testing. Therefore, while the topic is present, the operational details requested by the agent action are absent.",
  "status": null,
  "gaps": [],
  "risk": null
}

```

Art. 33 — Breach notification to SA

Priority: p3 **Chapter:** Ch.4 – Controller & processor

Severity: critical **Status:** missing

Score: 0/100

Notes:

The policy does not contain information regarding breach notification procedures to a supervisory authority or the establishment of a 72-hour timeline for such notifications. It also does not mention operational breach logs or their review by humans.

```

{
  "article_number": 33,
  "article_title": "Breach notification to SA",
  "chapter": "Ch.4 – Controller & processor",
  "priority": "p3",
  "policy_present": false,
  "implementation_unverified": false,
  "needs_human_review": true,
  "evidence": [],
  "notes": "The policy does not contain information regarding breach notification procedures to a supervisory authority or the establishment of a 72-hour timeline for such notifications. It"
}

```

```

also does not mention operational breach logs or their review by humans.",
  "status": null,
  "gaps": [],
  "risk": null
}

```

Art. 34 — Breach communication to data subject

Priority: p3 Chapter: Ch.4 – Controller & processor
 Severity: critical Status: missing
 Score: 0/100
 Notes

The policy does not contain information about procedures for communicating data breaches to data subjects, as required by GDPR Article 34.

```

{
  "article_number": 34,
  "article_title": "Breach communication to data subject",
  "chapter": "Ch.4 – Controller & processor",
  "priority": "p3",
  "policy_present": false,
  "implementation_unverified": false,
  "needs_human_review": true,
  "evidence": [],
  "notes": "The policy does not contain information about procedures for communicating data
breaches to data subjects, as required by GDPR Article 34.",
  "status": null,
  "gaps": [],
  "risk": null
}

```

Art. 35 — DPIA

Priority: p3 Chapter: Ch.4 – Controller & processor
 Severity: critical Status: missing
 Score: 0/100
 Notes

The policy does not mention Data Protection Impact Assessments (DPIAs) or similar risk assessment procedures related to high-risk processing activities as required by Article 35 of the GDPR. The policy focuses on data collection, use, disclosure, and user rights, but does not include any provisions for conducting DPIAs.

```

{
  "article_number": 35,
  "article_title": "DPIA",
  "chapter": "Ch.4 – Controller & processor",
  "priority": "p3",
  "policy_present": false,
  "implementation_unverified": false,
  "needs_human_review": true,
  "evidence": [],
  "notes": "The policy does not mention Data Protection Impact Assessments (DPIAs) or similar
risk assessment procedures related to high-risk processing activities as required by Article 35
of the GDPR. The policy focuses on data collection, use, disclosure, and user rights, but does
not include any provisions for conducting DPIAs.",
  "status": null,
  "gaps": [],
  "risk": null
}

```

Art. 37 — DPO designation

Priority: p2 Chapter: Ch.4 – Controller & processor
 Severity: warning Status: partial
 Score: 28/100
 Risk: high
 Gaps

- The policy does not mention whether the company is a public authority or body.
- The policy does not explicitly state if the company performs large-scale monitoring of data subjects.

- The policy does not confirm whether the core activities involve processing special categories of data or data relating to criminal convictions on a large scale.
- The policy does not provide contact details for a Data Protection Officer.

Notes

The provided policy text does not contain information regarding the designation of a Data Protection Officer (DPO) as required by GDPR Article 37. Specifically, it does not address whether the company's activities fall under the criteria for mandatory DPO designation (public authority, large-scale monitoring, or processing special categories of data). Furthermore, the contact details of a DPO are not published. Therefore, the status is partial, and the risk is high due to the lack of information on a critical GDPR compliance aspect.

```
{
  "article_number": 37,
  "article_title": "DPO designation",
  "chapter": "Ch.4 – Controller & processor",
  "priority": "p2",
  "status": "partial",
  "gaps": [
    "The policy does not mention whether the company is a public authority or body.",
    "The policy does not explicitly state if the company performs large-scale monitoring of data subjects.",
    "The policy does not confirm whether the core activities involve processing special categories of data or data relating to criminal convictions on a large scale.",
    "The policy does not provide contact details for a Data Protection Officer."
  ],
  "evidence": [],
  "risk": "high",
  "needs_human_review": false,
  "notes": "The provided policy text does not contain information regarding the designation of a Data Protection Officer (DPO) as required by GDPR Article 37. Specifically, it does not address whether the company's activities fall under the criteria for mandatory DPO designation (public authority, large-scale monitoring, or processing special categories of data). Furthermore, the contact details of a DPO are not published. Therefore, the status is partial, and the risk is high due to the lack of information on a critical GDPR compliance aspect.",
  "article_material_used": "text"
}
```

Art. 38 — DPO position

Priority: p3 Chapter: Ch.4 – Controller & processor

Severity: critical Status: missing

Score: 0/100

Notes

The policy does not mention the appointment, role, or position of a Data Protection Officer (DPO) or any specific language regarding their independence. Therefore, Article 38 is not addressed.

```
{
  "article_number": 38,
  "article_title": "DPO position",
  "chapter": "Ch.4 – Controller & processor",
  "priority": "p3",
  "policy_present": false,
  "implementation_unverified": false,
  "needs_human_review": true,
  "evidence": [],
  "notes": "The policy does not mention the appointment, role, or position of a Data Protection Officer (DPO) or any specific language regarding their independence. Therefore, Article 38 is not addressed.",
  "status": null,
  "gaps": [],
  "risk": null
}
```

Art. 39 — DPO tasks

Priority: p2 Chapter: Ch.4 – Controller & processor

Severity: warning Status: partial

Score: 52/100

Risk: medium

Gaps

- The DPO mandate does not explicitly cover advising on DPIAs, monitoring DPIA performance, cooperating with the supervisory authority, or acting as a contact point for the supervisory authority.

Notes

The provided policy text does not contain any information regarding the tasks or mandate of a Data Protection Officer (DPO). Therefore, it's impossible to verify if the DPO mandate covers advising, monitoring compliance, DPIA involvement, or cooperation with the supervisory authority. The policy only describes Yelp's general data handling practices.

```
{
  "article_number": 39,
  "article_title": "DPO tasks",
  "chapter": "Ch.4 – Controller & processor",
  "priority": "p2",
  "status": "partial",
  "gaps": [
    "The DPO mandate does not explicitly cover advising on DPIAs, monitoring DPIA performance, cooperating with the supervisory authority, or acting as a contact point for the supervisory authority."
  ],
  "evidence": [],
  "risk": "medium",
  "needs_human_review": false,
  "notes": "The provided policy text does not contain any information regarding the tasks or mandate of a Data Protection Officer (DPO). Therefore, it's impossible to verify if the DPO mandate covers advising, monitoring compliance, DPIA involvement, or cooperation with the supervisory authority. The policy only describes Yelp's general data handling practices.",
  "article_material_used": "text"
}
```

Art. 40 — Codes of conduct

Priority: p3 **Chapter:** Ch.4 – Controller & processor

Severity: critical **Status:** missing

Score: 0/100

Notes

The provided policy text does not contain any mention or discussion of codes of conduct, adherence to codes of conduct, or any regulatory approval processes related to such codes. Article 40 of the GDPR pertains to these specific topics, which are absent in the given Yelp privacy policy.

```
{
  "article_number": 40,
  "article_title": "Codes of conduct",
  "chapter": "Ch.4 – Controller & processor",
  "priority": "p3",
  "policy_present": false,
  "implementation_unverified": false,
  "needs_human_review": true,
  "evidence": [],
  "notes": "The provided policy text does not contain any mention or discussion of codes of conduct, adherence to codes of conduct, or any regulatory approval processes related to such codes. Article 40 of the GDPR pertains to these specific topics, which are absent in the given Yelp privacy policy.",
  "status": null,
  "gaps": [],
  "risk": null
}
```

Art. 42 — Certification

Priority: p3 **Chapter:** Ch.4 – Controller & processor

Severity: critical **Status:** missing

Score: 0/100

Notes

The policy does not mention certifications or claims related to them. It does mention professional licenses or certifications in the context of professional background information for businesses, but this is not related to the GDPR Article 42 topic of data protection certification.

```
{
  "article_number": 42,
  "article_title": "Certification",
  "chapter": "Ch.4 – Controller & processor",
```

```

    "priority": "p3",
    "policy_present": false,
    "implementation_unverified": false,
    "needs_human_review": true,
    "evidence": [],
    "notes": "The policy does not mention certifications or claims related to them. It does mention professional licenses or certifications in the context of professional background information for businesses, but this is not related to the GDPR Article 42 topic of data protection certification.",
    "status": null,
    "gaps": [],
    "risk": null
  }

```

Art. 44 — General principle for transfers

Priority: p2 Chapter: Ch.5 – Transfers to third countries

Severity: warning Status: partial

Score: 52/100

Risk: medium

Gaps

- The policy does not explicitly state that all international transfers comply with Chapter 5 mechanisms. While it mentions safeguarding information and ensuring an adequate level of data protection in accordance with EU standards, it doesn't detail the specific mechanisms used for all transfers.

Notes

The policy mentions that for European Residents, personal information may be transferred outside the EEA/Switzerland, and that steps are taken to safeguard this information, including the use of Standard Contractual Clauses. However, it does not explicitly state that ALL international transfers (beyond those involving European Residents) comply with Chapter 5 mechanisms, nor does it detail the specific mechanisms for all types of transfers. Therefore, it's only partially compliant.

```

{
  "article_number": 44,
  "article_title": "General principle for transfers",
  "chapter": "Ch.5 – Transfers to third countries",
  "priority": "p2",
  "status": "partial",
  "gaps": [
    "The policy does not explicitly state that all international transfers comply with Chapter 5 mechanisms. While it mentions safeguarding information and ensuring an adequate level of data protection in accordance with EU standards, it doesn't detail the specific mechanisms used for all transfers."
  ],
  "evidence": [],
  "risk": "medium",
  "needs_human_review": false,
  "notes": "The policy mentions that for European Residents, personal information may be transferred outside the EEA/Switzerland, and that steps are taken to safeguard this information, including the use of Standard Contractual Clauses. However, it does not explicitly state that ALL international transfers (beyond those involving European Residents) comply with Chapter 5 mechanisms, nor does it detail the specific mechanisms for all types of transfers. Therefore, it's only partially compliant.",
  "article_material_used": "text"
}

```

Art. 45 — Adequacy decision transfers

Priority: p2 Chapter: Ch.5 – Transfers to third countries

Severity: warning Status: partial

Score: 44/100

Risk: critical

Gaps

- The policy does not specify whether Yelp transfers personal data to third countries or international organizations.
- The policy does not mention adequacy decisions or any other mechanisms for ensuring adequate protection of personal data transferred to third countries or international organizations.

Notes

The policy does not contain any information regarding international data transfers or the mechanisms used to ensure the adequacy of protection for such transfers. Therefore, compliance with Article 45 cannot be verified.

```
{
  "article_number": 45,
  "article_title": "Adequacy decision transfers",
  "chapter": "Ch.5 - Transfers to third countries",
  "priority": "p2",
  "status": "partial",
  "gaps": [
    "The policy does not specify whether Yelp transfers personal data to third countries or international organizations.",
    "The policy does not mention adequacy decisions or any other mechanisms for ensuring adequate protection of personal data transferred to third countries or international organizations."
  ],
  "evidence": [],
  "risk": "critical",
  "needs_human_review": false,
  "notes": "The policy does not contain any information regarding international data transfers or the mechanisms used to ensure the adequacy of protection for such transfers. Therefore, compliance with Article 45 cannot be verified.",
  "article_material_used": "text"
}
```

Art. 46 — Transfers with safeguards

Priority: p3 **Chapter:** Ch.5 – Transfers to third countries

Severity: warning **Status:** present (unverified)

Score: 70/100

```
{
  "article_number": 46,
  "article_title": "Transfers with safeguards",
  "chapter": "Ch.5 - Transfers to third countries",
  "priority": "p3",
  "policy_present": true,
  "implementation_unverified": true,
  "needs_human_review": true,
  "evidence": [],
  "notes": null,
  "status": null,
  "gaps": [],
  "risk": null
}
```

Art. 47 — Binding corporate rules

Priority: p3 **Chapter:** Ch.5 – Transfers to third countries

Severity: critical **Status:** missing

Score: 0/100

Notes

The policy does not mention Binding Corporate Rules (BCR) or any related concepts like DPA approval for such rules. The provided text focuses on general privacy policies, data collection, use, and disclosure, user rights, and compliance with laws like CCPA and Nevada law.

```
{
  "article_number": 47,
  "article_title": "Binding corporate rules",
  "chapter": "Ch.5 - Transfers to third countries",
  "priority": "p3",
  "policy_present": false,
  "implementation_unverified": false,
  "needs_human_review": true,
  "evidence": [],
  "notes": "The policy does not mention Binding Corporate Rules (BCR) or any related concepts like DPA approval for such rules. The provided text focuses on general privacy policies, data collection, use, and disclosure, user rights, and compliance with laws like CCPA and Nevada law.",
  "status": null,
  "gaps": [],
  "risk": null
}
```

Art. 77 — Right to lodge a complaint

Priority: p2 Chapter: Ch.8 – Remedies, liability & penalties

Severity: warning Status: partial

Score: 44/100

Risk: high

Gaps

- Policy does not inform data subjects of their right to lodge a complaint with a supervisory authority.
- Policy does not inform data subjects of how to lodge a complaint with a supervisory authority.

Notes

The policy does not mention the right to lodge a complaint with a supervisory authority or how to do so. This is a high-risk gap as it directly relates to a data subject's fundamental rights under GDPR.

```
{
  "article_number": 77,
  "article_title": "Right to lodge a complaint",
  "chapter": "Ch.8 – Remedies, liability & penalties",
  "priority": "p2",
  "status": "partial",
  "gaps": [
    "Policy does not inform data subjects of their right to lodge a complaint with a supervisory authority.",
    "Policy does not inform data subjects of how to lodge a complaint with a supervisory authority."
  ],
  "evidence": [],
  "risk": "high",
  "needs_human_review": false,
  "notes": "The policy does not mention the right to lodge a complaint with a supervisory authority or how to do so. This is a high-risk gap as it directly relates to a data subject's fundamental rights under GDPR.",
  "article_material_used": "text"
}
```

Art. 88 — Employment context

Priority: p2 Chapter: Ch.9 – Specific processing situations

Severity: critical Status: fail

Score: 0/100

Risk: critical

Gaps

- Recruitment
- Performance of the contract of employment
- Management, planning and organisation of work
- Equality and diversity in the workplace
- Health and safety at work
- Protection of employer's or customer's property
- Exercise and enjoyment of rights and benefits related to employment
- Termination of the employment relationship

Notes

The provided policy text does not contain any information related to the processing of employee data in the employment context, such as recruitment, monitoring, health and safety, or termination. Therefore, it is not possible to assess compliance with Article 88.

```
{
  "article_number": 88,
  "article_title": "Employment context",
  "chapter": "Ch.9 – Specific processing situations",
  "priority": "p2",
  "status": "fail",
  "gaps": [
    "Recruitment",
    "Performance of the contract of employment",
    "Management, planning and organisation of work",
    "Equality and diversity in the workplace",
    "Health and safety at work",
    "Protection of employer's or customer's property",
    "Exercise and enjoyment of rights and benefits related to employment",
    "Termination of the employment relationship"
  ],
}
```

```
"evidence": [],  
"risk": "critical",  
"needs_human_review": false,  
"notes": "The provided policy text does not contain any information related to the processing  
of employee data in the employment context, such as recruitment, monitoring, health and safety,  
or termination. Therefore, it is not possible to assess compliance with Article 88.",  
"article_material_used": "text"  
}
```

Appendix — human review queue

```
[
  {
    "kind": "p3_verify",
    "article_number": 8,
    "article_title": "Child's consent",
    "policy_present": false,
    "implementation_unverified": false,
    "evidence": [],
    "notes": "The policy explicitly states it is not directed to children under 13 and does not knowingly collect personal information from them, but it does not contain language regarding parental consent mechanisms or specific age thresholds for consent, which is the core of Article 8."
  },
  {
    "kind": "p3_verify",
    "article_number": 10,
    "article_title": "Criminal convictions data",
    "policy_present": false,
    "implementation_unverified": false,
    "evidence": [],
    "notes": "The policy does not mention criminal convictions data or any related concepts."
  },
  {
    "kind": "p3_verify",
    "article_number": 19,
    "article_title": "Notification on rectification/erasure",
    "policy_present": false,
    "implementation_unverified": false,
    "evidence": [],
    "notes": "The policy excerpt does not contain information regarding the notification of recipients upon rectification or erasure of personal data. The provided chunks and full excerpt focus on data collection, usage, security, and user rights, but lack specifics on downstream notifications to third parties or other recipients."
  },
  {
    "kind": "p3_verify",
    "article_number": 25,
    "article_title": "Privacy by design and default",
    "policy_present": false,
    "implementation_unverified": false,
    "evidence": [],
    "notes": null
  },
  {
    "kind": "p3_verify",
    "article_number": 26,
    "article_title": "Joint controllers",
    "policy_present": false,
    "implementation_unverified": false,
    "evidence": [],
    "notes": "The policy does not mention joint controllers or agreements between controllers."
  },
  {
    "kind": "p3_verify",
    "article_number": 27,
    "article_title": "Representatives (non-EU)",
    "policy_present": false,
    "implementation_unverified": false,
    "evidence": [],
    "notes": "The policy mentions Yelp Inc. is a Delaware corporation with headquarters in San Francisco, California, and Yelp Ireland Ltd. for European Residents. This implies the company operates in the EU but does not explicitly address the appointment of a non-EU representative as required by Article 27."
  },
  {
    "kind": "p3_verify",
    "article_number": 32,
    "article_title": "Security of processing",
    "policy_present": true,
    "implementation_unverified": true,
    "evidence": [],
    "notes": "The policy mentions safeguards and security but does not detail specific measures like encryption or access controls. It also lacks mention of incident response or testing. Therefore, while the topic is present, the operational details requested by the agent action are absent."
  },
  {
    "kind": "p3_verify",
    "article_number": 33,
```

```

    "article_title": "Breach notification to SA",
    "policy_present": false,
    "implementation_unverified": false,
    "evidence": [],
    "notes": "The policy does not contain information regarding breach notification procedures
to a supervisory authority or the establishment of a 72-hour timeline for such notifications.
It also does not mention operational breach logs or their review by humans."
  },
  {
    "kind": "p3_verify",
    "article_number": 34,
    "article_title": "Breach communication to data subject",
    "policy_present": false,
    "implementation_unverified": false,
    "evidence": [],
    "notes": "The policy does not contain information about procedures for communicating data
breaches to data subjects, as required by GDPR Article 34."
  },
  {
    "kind": "p3_verify",
    "article_number": 35,
    "article_title": "DPIA",
    "policy_present": false,
    "implementation_unverified": false,
    "evidence": [],
    "notes": "The policy does not mention Data Protection Impact Assessments (DPIAs) or similar
risk assessment procedures related to high-risk processing activities as required by Article 35
of the GDPR. The policy focuses on data collection, use, disclosure, and user rights, but does
not include any provisions for conducting DPIAs."
  },
  {
    "kind": "p3_verify",
    "article_number": 38,
    "article_title": "DPO position",
    "policy_present": false,
    "implementation_unverified": false,
    "evidence": [],
    "notes": "The policy does not mention the appointment, role, or position of a Data
Protection Officer (DPO) or any specific language regarding their independence. Therefore,
Article 38 is not addressed."
  },
  {
    "kind": "p3_verify",
    "article_number": 40,
    "article_title": "Codes of conduct",
    "policy_present": false,
    "implementation_unverified": false,
    "evidence": [],
    "notes": "The provided policy text does not contain any mention or discussion of codes of
conduct, adherence to codes of conduct, or any regulatory approval processes related to such
codes. Article 40 of the GDPR pertains to these specific topics, which are absent in the given
Yelp privacy policy."
  },
  {
    "kind": "p3_verify",
    "article_number": 42,
    "article_title": "Certification",
    "policy_present": false,
    "implementation_unverified": false,
    "evidence": [],
    "notes": "The policy does not mention certifications or claims related to them. It does
mention professional licenses or certifications in the context of professional background
information for businesses, but this is not related to the GDPR Article 42 topic of data
protection certification."
  },
  {
    "kind": "p3_verify",
    "article_number": 46,
    "article_title": "Transfers with safeguards",
    "policy_present": true,
    "implementation_unverified": true,
    "evidence": [],
    "notes": null
  },
  {
    "kind": "p3_verify",
    "article_number": 47,
    "article_title": "Binding corporate rules",
    "policy_present": false,
    "implementation_unverified": false,
    "evidence": [],
    "notes": "The policy does not mention Binding Corporate Rules (BCR) or any related concepts
like DPA approval for such rules. The provided text focuses on general privacy policies, data

```

collection, use, and disclosure, user rights, and compliance with laws like CCPA and Nevada law.

"
}
]